

1 Q. What were you doing that night?
2 A. We were celebrating Preston's birthday. He was
3 just turning 17.
4 Q. What were you guys doing that night?
5 A. We were having a party. We went to go see a
6 movie.
7 Q. Do you remember what movie you went to see?
8 A. We went to go see *Iron Man 2*.
9 Q. Did you guys go anyplace else?
10 A. We went to a pizza place. I don't recall the
11 actual name, but it was a deep dish pizza restaurant.
12 Q. Okay. Who all went to the movie and the pizza?
13 A. It was Preston, me, Marcus Blanckensee, Mr. Moore,
14 Mrs. Moore, Preston's uncle, Preston's sister, I believe, and
15 grandparents.
16 Q. Okay. And you guys go to a movie, go eat pizza.
17 What did you do after that?
18 A. Then we went back to the house, back to Mr.
19 Moore's house.
20 Q. Okay. I want to start back to the beginning of
21 the night through the movie and the pizza, going back to
22 Preston's house. Did you plan to stay the night at Preston's
23 house, or had you made arrangements for it at that point?
24 A. At that time, I really had no arrangements made to
25 spend the night.

1 Q. Okay. Did your mom up to that point, had she
2 given you permission?
3 A. She had not, no.
4 Q. You go back to Preston's house. Can you tell me
5 what city he lived in?
6 A. He lived in Overland Park.
7 Q. That's here in Johnson County, Kansas?
8 A. Yes.
9 Q. What do you guys do when you get back to the
10 house?
11 A. We had some cake. There was cookie cake, I'm
12 sorry.
13 Q. Okay.
14 A. And we went after hanging out for a while, the
15 kids, Marcus, Preston and I and two of Preston's other friends
16 went down to the basement and we played some video games.
17 Q. Do you recall how long you guys played video games
18 for?
19 A. It was well into the night, a few hours at least.
20 Q. At some point was the decision made that you
21 wanted to or you were going to stay the night at the Moore
22 house?
23 A. Yes.
24 Q. How did that come about?
25 A. I was just having a lot of fun with Preston and

1 Marcus, and I just wanted to hang out with them as long as I
2 could.

3 Q. So what did you do?

4 A. I went upstairs and I called up my mother on their
5 house phone, and I asked her if I could spend the night, and
6 she was very persistent on, no, that I couldn't.

7 Q. And were you eventually able to have her convinced
8 otherwise?

9 A. Yes.

10 Q. How did that happen?

11 A. I had Mr. Moore talk to her, and he sweet-talked
12 her into allowing me to spend the night over there, and that
13 was that.

14 Q. So that would have happened once you got back to
15 the house?

16 A. Yes.

17 Q. All right. Who all -- well, you guys played video
18 games after. What did you do next?

19 A. After video games, Preston's two other friends
20 left, and it just left Marcus, Preston and I playing video
21 games. And then about an hour or so later, we went upstairs
22 because Mr. Moore had told us to go to bed. So we all went
23 upstairs.

24 Q. And when you would stay the night at the Moore
25 house, where would you sleep?

1 A. I slept on the couch.
2 Q. So was that couch in the upstairs living area?
3 A. It was in a living area where it was like a slight
4 downward like step and a half below the normal level.
5 Q. Okay. But not the basement?
6 A. No, it was not the basement. It was the main
7 level. It was lower from everything else.
8 Q. So who all was in that room with you when you go
9 to sleep?
10 A. It was Mr. Moore, Preston, Marcus and I.
11 Q. And how do you know Marcus?
12 A. Marcus and I have been friends since basically
13 middle school through elementary school.
14 Q. What were you guys doing when you went upstairs to
15 that room? Did you go to sleep immediately, or did you do
16 something else?
17 A. We were watching *Grand Torino*.
18 Q. A movie?
19 A. It is a movie, yes, sorry.
20 Q. Where were you at in the room?
21 A. I was looking into the room from like the back
22 looking forward to the TV. I was on the left side on the left
23 couch up against the wall.
24 Q. And where was Preston?
25 A. Preston was again looking straight into the room.

1 He was on the left side also, but he was more in the middle in
2 the back area.

3 Q. And what about Marcus?

4 A. Marcus was on the other side of me. He was on the
5 right side up against the right wall on a couch also, a
6 smaller couch.

7 Q. Marcus is kind of across from you?

8 A. Yes.

9 Q. And where was Mr. Moore?

10 A. He was on the other side of Preston, closer to
11 Marcus's side.

12 Q. So you guys were watching a movie?

13 A. Yes.

14 Q. What happens next?

15 A. The movie was almost done, and Preston and Marcus
16 are both almost asleep, if not asleep.

17 Q. Can you approximate around what time it was that
18 the movie is ending? Was it after midnight on the 15th?

19 A. It was definitely after midnight. It was probably
20 closer to two, 2:30-ish from what I could tell glancing at the
21 clock, you know, after the movie or so.

22 Q. So you said some people were dozing off to sleep?

23 A. Yes.

24 Q. Who was that?

25 A. That was Preston and Marcus.

1 Q. What happens after that?
2 A. After the movie was done, the lights were turned
3 off, and I had shut my eyes to go to sleep.
4 Q. Are you still on the couch?
5 A. I am still on the couch, yes.
6 Q. Can you tell me were you lying on your back or on
7 your stomach?
8 A. I was lying on my back.
9 Q. What do you remember happening next?
10 A. I remember dozing off slightly, closing my eyes to
11 the point where I could relax enough to fall asleep, and I
12 heard a little bit of shuffling around, and they were heavier
13 footsteps, definitely heavier footsteps, and I heard them
14 leave the room momentarily.
15 Q. And then what do you hear or see next?
16 A. After that, I just laid there for a little bit,
17 and I heard footsteps coming back toward the room, and I saw
18 bright lights like flashes of light.
19 Q. What happens after that?
20 A. I just lay there, just wondering what is all going
21 on exactly.
22 Q. Now, did you open your eyes or get up?
23 A. I stayed pretty still the entire time.
24 Q. And what happens after that?
25 A. After that I heard the footsteps kind of moving

1 around a little bit. They were kind of walking, pacing around
2 a little bit. And then all of a sudden, I felt a tap on my
3 groin, more specifically my genital area.

4 Q. When you say your "genital area," what part of
5 your body?

6 A. My penis area.

7 Q. Were you wearing clothes?

8 A. I was wearing clothes, yes.

9 Q. What were you wearing?

10 A. I was wearing tan cargo shorts.

11 Q. Was this tap or touch over your clothes or under?

12 A. It was on top of my clothes.

13 Q. And had you given anyone permission to touch that
14 part of your body?

15 A. I had not, no.

16 Q. What do you hear or see next?

17 A. After the tap, I shuffled around a little bit. I
18 just kind of moved a little bit, and I opened my eyes. They
19 weren't open, they were just kind of squinting open, and I saw
20 a hand retreating back from my genital area or my groin area.

21 Q. And then what do you see or hear?

22 A. After that, I heard heavier footsteps, kind of
23 scurrying away. They weren't running fast. They were just
24 fast-paced walking.

25 Q. Were you able to tell in what direction of the

1 house they were headed?

2 A. They were headed back towards the front door and
3 up the stairs.

4 Q. And what rooms are up the stairs?

5 A. I'm guessing, all the other bedrooms.

6 Q. Okay. And right after that, do you open your
7 eyes?

8 A. After that, I waited just monetarily after I heard
9 the footsteps stopping, you know, the shuffling around. I got
10 up and grabbed the house phone.

11 Q. I'm going to stop you for a second. When you got
12 up, where was Preston at?

13 A. Preston is still laying on the couch or on his
14 chair, sorry, and Marcus is still laying on his couch, and
15 both of them had a blanket covering their entire bodies plus
16 their face.

17 Q. All right. And did they appear to be awake?

18 A. They were both really -- they were out of it.
19 They were both asleep from what I could tell.

20 Q. Now, you mentioned going to get the house phone?

21 A. Yes.

22 Q. Where was the house phone at?

23 A. The house phone was close to Preston.

24 Q. Okay. And what did you do when you get to the
25 house phone?

1 A. I scurried over to the bathroom, and I called my
2 mother and I asked her to come pick me up, and that I would
3 explain everything when she picked me up.

4 Q. So you didn't tell her anything about what
5 happened right just then?

6 A. No.

7 Q. And you just tell her to come pick you up?

8 A. Yes.

9 Q. What do you do after that?

10 A. After that I walked back, and I tried to wake up
11 Marcus, and Marcus was still completely out of it. He was
12 asleep to the point where there was no waking him up.

13 Q. Okay.

14 A. So I gave up on that, and I went to go wake up
15 Preston. Preston was asleep, but he was more alert than
16 Marcus was.

17 Q. Okay. And did you let him know you were leaving?

18 A. I told Preston that I needed to leave because I
19 had forgotten to take my medication at the time.

20 Q. Okay. And you told Preston you needed to go?

21 A. Yes.

22 Q. And did you see anyone else in the Moore house
23 before you left?

24 A. As I was walking to the front door and getting
25 ready to leave, I saw Mr. Moore at the walkout of the hallway

1 over to the balcony that views the front door and out to the
2 front of the house. And he asked me what was going on, and I
3 told him that I had forgotten my medication that day, or that
4 night, and that I was going to go home, and I really wasn't in
5 the mood to spend the night anymore.

6 Q. Why didn't you confront him at the time?

7 A. At that time I was still very on edge and nervous.
8 I was scared what his reply would have been, and just the
9 whole situation shook me up a lot.

10 Q. Okay. Did your mom come and pick you up?

11 A. She picked me up within a matter of a few minutes.

12 Q. And after she picked you up, did you tell her what
13 happened?

14 A. On the car ride home I briefly ran it all over
15 with her. I told her what was going on and what had happened,
16 and she was mortified.

17 Q. Okay. Now, after that happened in May, did it
18 make you think of anything else that had occurred with Mr.
19 Moore in the past?

20 A. Yes, it did.

21 Q. And when did that occur?

22 A. It occurred the year before on winter break for
23 school.

24 Q. So would this have been in December of 2009?

25 A. Yes.

1 Q. How old were you back then?
2 A. I was still sixteen.
3 Q. And do you remember the exact date?
4 A. I do not off the top of my head.
5 Q. Did you write it down at the time?
6 A. At the time, yes, I did.
7 Q. So you would have, but you don't have that
8 anymore?
9 A. No.
10 Q. Okay. What are you doing that night?
11 A. That night Preston and I were just hanging out,
12 and we had made previous arrangements to spend the night over
13 at Preston's house, and we just played video games until late
14 at night around midnight to one-ish.
15 Q. And I'm going to stop you for a second. Is this
16 the same house you were at in May 2010?
17 A. Yes, it was.
18 Q. You played video games. What do you do after
19 that?
20 A. After that, we went upstairs. Again, Mr. Moore
21 had told us "Time for bed, it's getting late," you know, and
22 so we were basically trying to sleep on the couch.
23 Q. Okay. When you say, "we were trying to go to
24 sleep on the couch," who was trying to sleep on the couch?
25 A. Preston and I.

1 Q. Together on the same couch?
2 A. No, no. He was on a different couch, basically
3 the same couch that he was on in the 2010 case.
4 Q. Okay.
5 A. He was still in the back on the left side closest
6 to the left side of the wall, and I was on the couch that was
7 up against the left wall.
8 Q. And I want to make sure I understand. Earlier you
9 testified that Preston was in a chair?
10 A. Yes.
11 Q. Was it a chair or a couch?
12 A. It was a fold-out chair kind of. It was like a
13 recliner chair.
14 Q. All right. And that night you are on the same
15 couch?
16 A. Yes.
17 Q. And do you remember if you were sleeping face down
18 or on your back?
19 A. I was sleeping face down that time.
20 Q. And did you actually fall asleep that night?
21 A. That night I did, yes.
22 Q. How did you wake up?
23 A. I woke up after feeling hands in my groin area
24 from the top of my waist to the top of the bottom of my
25 waist -- sorry -- to the bottom of my thigh, and I felt hands

1 shuffling around, a little bit like moving side to side, and
2 then push down on the cushions below me.

3 Q. And I want to make sure I understand this
4 completely. You're lying on your stomach?

5 A. Yes.

6 Q. Are you lying flat on the couch?

7 A. I am, yes.

8 Q. And so you feel hands below your body?

9 A. Yes.

10 Q. And that's between the couch --

11 A. And my clothes.

12 Q. The hands are?

13 A. Yes.

14 Q. Are the hands palms down or palms up?

15 A. They were palms down.

16 Q. Palms down, and do you open your eyes?

17 A. At that time, yes, I did open my eyes.

18 Q. And who was there?

19 A. Mr. Moore was there, and he reassured me when I
20 was waking up that he was just looking for the remote that was
21 underneath me.

22 Q. When you say "remote," are you talking about a
23 remote control?

24 A. The remote for the TV.

25 Q. And when you're talking about his palms being down

1 in between you and the couch cushion, were his hands actually
2 touching your body?

3 A. Yes, they were.

4 Q. Was that over or under your clothing?

5 A. That was on underneath -- on top, but underneath
6 me.

7 Q. So it was on top of your clothing. He wasn't
8 touching clothing but underneath your body?

9 A. Yes.

10 Q. I think you said it was your groin area he
11 touched?

12 A. Yes.

13 Q. Did you ever give Mr. Moore permission to touch
14 you at that time?

15 A. I did not, no; I did not, no.

16 Q. Now, did you report it back in December of 2009 to
17 your mom or to any adult?

18 A. At that time, I did not, no.

19 Q. Why not?

20 A. Because I gave him the benefit of the doubt
21 because I didn't know what was going on. I just woke up, and
22 at that time I figured maybe he is just looking for the remote
23 because the TV was still on, and I didn't think anything of it
24 at that time because I was half asleep.

25 Q. Okay. And then later, when this happened in May,

1 you start thinking about it?

2 A. Yes.

3 Q. Now, in May, was the police report made?

4 A. It was, yes.

5 Q. And did you talk to an officer and prepare a
6 written statement?

7 A. Yes.

8 MS. RASMUSSEN: May I approach the witness?

9 THE COURT: Yes, you may.

10 Q. (By Ms. Rasmussen) Nick, I'm going to show you
11 what's been marked as State's Exhibit 1. Do you recognize
12 that?

13 A. I do, yes.

14 Q. It's two pages stapled together. So if you want
15 to look at the second page, make sure you recognize that as
16 well.

17 A. I do.

18 Q. And what is that?

19 A. That is the written statement that I made the
20 night that I told the officers what had happened.

21 Q. Okay. And it's a fair and accurate
22 representation? No one added anything to your statement or
23 has taken anything away?

24 A. Nobody added anything or has taken anything away.

25 MS. RASMUSSEN: Your Honor, at this time

1 the State moves to admit State's Exhibit 1. Mr. Regan would
2 like to approach.

3 MR. REGAN: I will ask if we can approach,
4 Judge.

5 THE COURT: Yes.

6 (Whereupon, the following proceedings were
7 held at the bench out of the presence of the jury.)

8 MR. REGAN: Your Honor, we object to the
9 admission of this exhibit. I think it's cumulative. I think
10 it's just rehashing of his testimony. It's improper
11 bolstering of the testimony that hasn't been impeached. He
12 has not been impeached or the integrity of what he said in the
13 statement is not in issue.

14 MS. RASMUSSEN: The State's position is the
15 State can offer prior consistent statements which if you want
16 the case, it's *State v. Kackley*. It's the State's position
17 that this evidence is admissible pursuant to that.

18 THE COURT: The objection is noted and
19 overruled.

20 MS. RASMUSSEN: Your Honor, just to make
21 sure, State's 1 is admitted?

22 THE COURT: State's 1 is admitted.

23 (Whereupon, State's Exhibit No. 1 was
24 admitted into evidence.)

25 (Whereupon, the following proceedings were

1 held away from the bench in the presence of the jury.)

2 Q. (By Ms. Rasmussen) Now, Nick, very briefly, prior
3 to this police report, had you had any problems with Scott
4 Moore?

5 A. I had not, no.

6 Q. Had you been in any fights with Preston Moore?

7 A. No, we were very good friends. We saw everything
8 basically eye to eye. We never really argued about anything.

9 Q. Did you have any arguments with Scott or Preston
10 on that night?

11 A. No.

12 Q. After the report, were you ever able to talk or
13 hang out with Preston again?

14 A. After the report, it was too awkward for me to
15 hang out with or talk to Preston or Mr. Moore again.

16 Q. All right. And back at the time you made the
17 report, were you aware that there had been allegations of
18 improper conduct by Mr. Moore in the past?

19 A. At the time, yes.

20 Q. Did you know of any of this, the specifics of
21 those?

22 A. I had only heard bits and pieces. Eavesdropping,
23 but not really eavesdropping, but overhearing.

24 Q. Did you know that it involved males?

25 A. That I had some recognition to.

1 Q. But you didn't know about the exact statements of
2 those people?

3 A. I did not, no.

4 Q. I'm going to ask you if you know some people. Do
5 you know Collin Williams?

6 A. No, I did not.

7 Q. Do you know Tommy Chaney?

8 A. No.

9 MR. REGAN: Can we approach, Counsel, just
10 for a second?

11 THE COURT: Yes.

12 (Whereupon, the following proceedings were
13 held out of the presence of the jury.)

14 MR. REGAN: Your Honor, it would appear
15 that Counsel is getting into the 60-455 evidence. I would ask
16 the Court to note my objection to this type of evidence as the
17 prejudicial value far outweighs the probative value of it as
18 well as remoteness of time, and it's our position that this is
19 not likely to prove Mr. Moore's intent, opportunity, ability
20 and modus operandi, and we ask that we have a continuing
21 objection as to that topic with this witness.

22 THE COURT: Any objection?

23 MS. RASMUSSEN: No.

24 THE COURT: The objection is noted, and it
25 will for the record be noted as a continuing objection, but

1 overruled.

2 MR. REGAN: Thank you.

3 (Whereupon, the following proceedings were
4 held away from the bench in the presence of the jury.)

5 Q. (By Ms. Rasmussen) Now, Nick, I may have said his
6 name, but I can't remember. Tommy Chaney, do you know that
7 person?

8 A. I do not, no.

9 Q. What about Brett Kingcade?

10 A. No.

11 Q. Ben Gooding?

12 A. No.

13 Q. Kyle Heslop?

14 A. No.

15 Q. Jordan Galbraith?

16 A. No.

17 MS. RASMUSSEN: The State has nothing
18 further of this witness.

19 THE COURT: Cross-examination?

20 MR. REGAN: May we see you before again?

21 THE COURT: Yes.

22 (Whereupon, the following proceedings were
23 held at the bench out of the presence of the jury.)

24 MR. REGAN: Judge, if I heard Mr. Koch's
25 testimony correctly under oath on direct, he indicated he was

1 an Eagle Scout, and I don't think it was necessary to put that
2 in, but I believe it gratuitously put his character in
3 evidence. I ask to review the Court's ruling of my going into
4 topics of drug use, Satan worship, and I'll tell you that when
5 a boy becomes an Eagle Scout, he has to take an oath, and part
6 of that oath is, as I recall, he has to agree to be one with
7 God, he has to agree to be reverent, and he has to agree to be
8 of sound mind and body. And it's my position that since they
9 put it in, that I should be allowed to ask him if he violated
10 that oath doing drugs, selling drugs, worshipping the devil.

11 THE COURT: State?

12 MS. RASMUSSEN: The State did not offer
13 anything for the purposes of credibility but to explain how he
14 knows the Moore family. There was no vast amount of time
15 spending about the oath of an Eagle Scout or any duties of an
16 Eagle Scout, just that that's how he developed a relationship
17 with the Moore family.

18 THE COURT: I'm not going to allow in the
19 evidence of the satanic issue or drug selling, unless there
20 was some evidence that he was under the influence on these
21 occasions. You could inquire about that and those are
22 specifically of misconduct.

23 The Eagle Scout, the only evidence discussed was how he
24 knew this defendant. The Eagle Scout part, he had some
25 project where he got a compost together is all I heard about

1 the Eagle Scout. It's not about an oath or being a great guy
2 or anything like that. The objection is noted. I think you
3 can inquire. You had asked previously about some conversation
4 that he had been in some trouble, and the defendant had
5 admonished him. You can ask about that, but not that it was
6 anything regarding drugs.

7 MR. REGAN: All right. Did you say I can
8 ask him if used drugs within eight hours of reporting?

9 THE COURT: If he was under the influence
10 of drugs, do you have a good faith basis that he was on drugs?

11 MR. REGAN: I haven't. I've been denied
12 interview.

13 MS. RASMUSSEN: The State has not denied an
14 interview with him. We had repeatedly said it was up to them.

15 MR. REGAN: I think we all know as
16 ex-prosecutors, if you want to produce a witness, you can, no
17 matter what the witness' wishes are.

18 MS. RASMUSSEN: No, I take issue with that.

19 THE COURT: You can ask if he was under the
20 influence at the time of these events, if he was under the
21 influence, but nothing about selling or convictions.

22 MR. REGAN: And I will be allowed to ask
23 him? He just said there was no disagreement. I have two
24 witnesses that indicate there was a disagreement. If you tell
25 me what the parameters are, I can get into it.

1 THE COURT: I think you can ask if he had a
2 disagreement with them and put on that evidence in your case
3 or through other witnesses.

4 MS. RASMUSSEN: Not specifics?

5 THE COURT: Not specifics that there was
6 any drug dealing.

7 MR. REGAN: Am I allowed to ask, was there
8 a disagreement about you being in trouble in school?

9 THE COURT: That's as far as you can go.
10 What else did you want to ask?

11 MR. REGAN: My client informed me, and my
12 client's son, that it was an argument about him selling drugs.

13 THE COURT: You can ask him so, if there
14 was argument about him being in trouble at school.

15 (Whereupon, the following proceedings were
16 held away from the bench in the presence of the jury.)

17 MR. REGAN: Your Honor, please?

18 THE COURT: You may.

19 CROSS-EXAMINATION

20 BY MR. REGAN:

21 Q. Good afternoon, Mr. Koch. We met a few minutes
22 ago?

23 A. Correct.

24 Q. We have not met each other before?

25 A. We have not.

1 Q. In fact, have you received a letter from me where
2 I asked you if you would be kind enough to allow me to speak
3 to you?

4 A. Yes.

5 Q. You and your mother made the decision not to give
6 me that opportunity?

7 A. Correct.

8 Q. Would it be fair to say that if you were in
9 trouble, you would have wanted your attorney to interview the
10 witnesses against you?

11 A. What do you mean?

12 Q. Exactly what I said.

13 MS. RASMUSSEN: Your Honor, I object as
14 relevance.

15 THE COURT: Sustained.

16 Q. (By Mr. Regan) Prior to May of 2010, you and
17 Preston Moore were good friends; right?

18 A. Yes.

19 Q. He was a welcomed guest at your home?

20 A. Kind of, yes.

21 Q. You were a welcomed guess at his home?

22 A. I believe so, yes.

23 Q. You two boys were scouts together?

24 A. Yes.

25 Q. You were both Eagle Scouts?

1 A. We both became Eagle Scouts.
2 Q. Scott Moore was an Eagle Scout?
3 A. He was, yes.
4 Q. Was he involved with scouting and teaching of your
5 scouts?
6 A. Yes, he was, yes.
7 Q. Was it a common occasion for you to bring video
8 games to Preston's home and play video games in the basement?
9 A. It only happened a very select few amounts of
10 time.
11 Q. And on occasion besides you two -- we're talking
12 about you spent the night at Preston's?
13 A. Not really, no. I would spend late nights, but I
14 would never ever spend the actual night overnight.
15 Q. Are you telling us these are the only two nights
16 you spent at the Moore home?
17 A. That I can recall, yes.
18 Q. And the first time you're alleging is in December
19 of '09, Mr. Moore didn't have to get on the phone and convince
20 your mother, you just were allowed to stay?
21 A. No. He did not have to convince her. I was
22 allowed to stay because it was for a break for school, so I
23 didn't have school the following day.
24 Q. And you and Preston were at different high schools
25 at the time?

1 A. Yes.
2 Q. What high school did you go to?
3 A. I went to Blue Valley West.
4 Q. What high school did he go to?
5 A. Blue Valley.
6 Q. Would it be fair to say that finals happen until
7 December, the 18th of the month?
8 A. Yes.
9 Q. Nobody is going to be spending the night before
10 the 18th?
11 A. Correct.
12 Q. So whatever might have happened, happened between
13 the 18th and the 31st of December?
14 A. Yes, that was one of the weekends.
15 Q. You say you wrote this down somewhere?
16 A. I personally don't have that on me, but I know my
17 mother has it in her desk.
18 Q. Your mom's going to testify sometime today or
19 tomorrow. Do you know if she brought it?
20 A. She probably brought it.
21 Q. What date does it say on there; do you remember?
22 A. I do not recall, no.
23 Q. Before Christmas or after Christmas?
24 A. It was before Christmas.
25 Q. And you're sure about that?

1 A. I am pretty positive.
2 Q. Sure as you're sitting here?
3 A. Sorry?
4 Q. As sure as you're sitting here?
5 A. Yes.
6 Q. And it wouldn't have happened Christmas Eve?
7 A. I don't believe so, no.
8 Q. And it wouldn't have happened Christmas Day;
9 right?
10 A. No.
11 Q. So sometime between the 18th and the 23rd?
12 A. Yes.
13 Q. And you're sure of that, just as sure as you're
14 sitting here?
15 A. I am pretty sure, yes.
16 Q. You gave a -- we'll get to that in a minute. And
17 this was a special occasion. Let's go back to 2010 for a
18 minute. This was a special occasion. It was Preston's
19 birthday?
20 A. Yes.
21 Q. And you knew that Mrs. Moore was going to graduate
22 from Baker University the next day?
23 A. I had no idea that Mrs. Moore was even in college
24 at the time.
25 Q. Was it made clear to you that you guys had to keep

1 the noise down because there was an important family function
2 that the Moores had to attend the next morning?
3 A. I had no knowledge of that at all.
4 Q. Are you sure about that?
5 A. I am positive, yes.
6 Q. This was a Friday night, was it not?
7 A. I believe so, yes.
8 Q. And the Moores treated you to dinner to Old
9 Chicago, a pizza place?
10 A. Yes.
11 Q. And they treated you to a movie, *Iron Man 2*, as
12 I'm told?
13 A. Yes.
14 Q. Is it fair to say that you had been in trouble at
15 school close in time?
16 A. I had been, yes.
17 Q. Is it fair to say that Mr. Moore told you he was
18 disappointed in you for that?
19 A. I do not recall the specifics. We talked about a
20 lot of things that day.
21 Q. On the way home from the movie, who was in the
22 car? Was it you, Scott, Sue, Marcus and the other two boys?
23 A. I do not recall that Mrs. Moore was in there.
24 Q. So Scott, you and your friends?
25 A. Yes.

1 Q. And that would be Preston?
2 A. Yes.
3 Q. Marcus Blanckensee?
4 A. Yes.
5 Q. And the other two fellows?
6 A. Yes.
7 Q. Is that where this disagreement took place?
8 A. What disagreement are you talking about.
9 Q. Him telling you he was disappointed in your
10 misconduct at school?
11 A. I do not recall him ever saying that.
12 Q. Is it possible that he did and you just don't
13 remember?
14 A. I don't believe that he would tell me that. He
15 didn't really have a lot of insight about my personal life at
16 the time except for what rumors were happening during Scouts,
17 and that was basically it.
18 Q. Did he tell you he knew you had been in trouble at
19 school?
20 A. He did not, no.
21 Q. Did you tell him you had been in trouble at
22 school?
23 A. No, I did not. I had kept that completely to
24 myself because it was not in need for the public to know.
25 Q. Were you on some medications at that time?

1 A. I do believe I was, Abilify and Lexapro.
2 Q. At the same time?
3 A. Yes.
4 Q. Did they conflict with your ability to see things
5 accurately?
6 A. No, they did not.
7 Q. Had you used any recreational drugs within eight
8 hours of this incident?
9 A. No, I had not.
10 Q. Why did you get upset with Scott Moore when Scott
11 Moore told you he was disappointed in you?
12 A. No, I did not, no. I didn't even hear him say
13 that he was disappointed in me. Not once did he ever
14 acknowledge that he was disappointed in me about anything. He
15 was very happy-go-lucky, cheerful, making jokes with us all in
16 the car. He was just being a good guy and having fun with the
17 kids.
18 Q. Let me see if I got this right. You're at the
19 Moore's you say under oath sometime in Christmas of 2009?
20 A. Yes.
21 Q. And you notice Mr. Moore with his palms down?
22 A. Yes.
23 Q. And you're lying face down?
24 A. Yes.
25 Q. And he tells you supposedly he's looking for the

1 channel changer, the remote control?

2 A. Yes, he is.

3 Q. And you don't think anything big about that and
4 you don't tell Preston?

5 A. I did not tell anybody because at the time it
6 didn't cross my mind really.

7 Q. And you certainly came back to the Moore home
8 between Christmas 2009 and May 2010; right?

9 A. I do not recall specifics.

10 Q. Is it possible you did, and you don't recall
11 specifics?

12 A. It's potentially possible, yes.

13 Q. Is it true you were there often?

14 A. I was not there on a regular basis, if that's what
15 you're trying to imply. I was there only for mostly
16 scout-related things and special occasions.

17 Q. Nick, isn't it true you were there more than five
18 times in the time frame we're discussing?

19 A. No, it's not true.

20 Q. Are you sure about that?

21 A. I am positive.

22 Q. Have you been there less than five times between
23 Christmas and May?

24 A. Yes.

25 Q. Whatever happened there, you had no trouble with

1 Mr. Moore?

2 A. No.

3 Q. And then there is this May 2010 stuff that
4 happens, and you go home and talk to your mom and dad about
5 it?

6 A. Yes.

7 Q. And your mom says, "I heard he did some other
8 stuff in Scouting outings in 2005 and 2006"?

9 A. Yes.

10 Q. And everybody discusses that he must have done
11 something wrong to you.

12 MS. RASMUSSEN: Judge, it calls for
13 speculation.

14 THE COURT: I'll allow it. Overruled.

15 Q. (By Mr. Regan) Whatever happened, and you called
16 the cops?

17 A. It did not happen in that specific order. The
18 events prior, I had heard rumors that Mr. Moore was indeed
19 involved with other cases involving kids. Nobody in my troop
20 or my mother or dad that knew a lot of information would tell
21 me about exactly what was going on. They thought it was best
22 for me not to know, and so I stopped asking questions after a
23 while. The adults in Troop 37 that I was in mostly kept it on
24 the down low, hush, hush. They didn't want to believe what
25 was going on because they all liked Mr. Moore a lot. And from

1 what I could tell, he was a good guy, but he's definitely not
2 all he's put out to be.

3 Q. Let me ask you.

4 MR. REGAN: I ask that that last response
5 be stricken as nonresponsive.

6 THE COURT: Overruled.

7 Q. (By Mr. Regan) Let me ask you something. Did your
8 parents tell you they knew about these rumors before May of
9 2010?

10 A. They had not, no.

11 Q. When did they tell you they learned?

12 A. They told me that they had heard of them or
13 learned of them after the whole incident in 2010 happened.

14 Q. You were made aware of that before going to the
15 Sunflower House; correct?

16 A. I was, yes.

17 Q. Did you ever take a minute that night to say:
18 "Preston, your dad put his hands on me, and I want to talk to
19 you about it"?

20 A. If I could have, I would have, but Preston was --
21 by the time that the whole event had happened and I had
22 basically gotten out of the house, everybody that was
23 downstairs was to the point of basically falling back asleep.
24 They were all exhausted.

25 Q. Could you have there down in the den, just inside

1 the front door, said to Mr. Moore: Hey, you put your hands on
2 me wrongly. I'm telling my mom, or I'm going to the police?

3 A. I could have, yes, but I chose not to because it
4 was very uncomfortable for me at the time to know that he
5 openly did it, and then tried to put it back on me as in,
6 "Well, what are you doing?" Like, what's happening? Nothing
7 happened. He's trying to cover it up.

8 Q. Could you have called Preston the next day and
9 said: Hey, your old man put his hands on me?

10 A. I could have, yes, but, again, I didn't want to
11 because it was a very sensitive, sore subject for me.

12 Q. You saw Preston and his mother the next day at
13 Scouting?

14 A. I did, yes, but I stayed my distance and did not
15 talk to them.

16 Q. And to this day, you haven't said to Preston, you
17 have not said: Hey, your father touched me?

18 A. I have not, and I know Preston, and I don't want
19 to hurt him any more than he's probably paying for.

20 Q. Let's talk about Marcus, Mr. Blanckensee, the
21 third guy sleeping down there.

22 A. He was, yeah.

23 Q. You didn't say to Marcus: Mr. Moore put his hands
24 on me?

25 A. I did not. That was because, again, he was

1 knocked out. He is a deep sleeper. He will sleep through
2 anything and everything.

3 Q. And the next day, you didn't tell Marcus: "Hey, I
4 was touched by Mr. Moore last night while were you laying
5 across the room?

6 A. I specifically did not talk to him about that. I
7 asked him if he had seen anything or heard anything, and he
8 basically told me that he was basically out like a light. He
9 was not aware of anything happening around him.

10 Q. Had you been in trouble at school May 15th?

11 A. I had been, yes.

12 Q. Did you describe the camera that supposedly was
13 used and some flash that was used in 2010 as a fancy 35
14 millimeter-type camera?

15 A. I don't know the specifics. It could have been a
16 phone or a phone camera flash, or for all I know -- all I know
17 is two very bright flashes, and then that really annoying
18 recharge beeping, buzzing noise.

19 Q. It sounded like a camera?

20 A. It sounded like a camera, yes.

21 Q. Did you tell some folks initially that you saw a
22 fancy black photography type of camera that was used?

23 A. I did.

24 Q. Are you aware that the Moores don't own one?

25 A. I don't know that it was the Moores that had it in

1 their possession. I remember seeing a camera like that
2 throughout the night, whether it be with his uncle or his
3 grandparents or something like that. I don't believe that the
4 Moores actually specifically had a camera for themselves.

5 Q. Are you saying that Mr. Moore was taking pictures
6 of you with his parents' camera?

7 A. I'm not saying that specifically.

8 Q. Mr. Moore is taking pictures of you with his
9 parents' camera in the middle of the night?

10 A. He could have. At this point, I really wouldn't
11 put it past him.

12 Q. Have you ever seen such pictures?

13 A. I have not seen the pictures, no. But it's not
14 that hard to delete things off a computer or a camera.

15 Q. Have you ever done it?

16 A. I have done it before, yes, I have deleted many
17 pictures off my cameras or computers. It's not that hard to
18 do. It's a simple right click of the mouse and hit delete.

19 Q. Does your family keep a family-type calendar?

20 A. My mother is known to keep some sort of an
21 organized calendar. My dad keeps one for work. My brother, I
22 don't know, and I don't because I don't believe in -- it's too
23 much work for me.

24 Q. You're not telling us today that there was any
25 flashing light Christmastime of 2009?

1 A. There was no pictures taken that night that I
2 could recall.

3 Q. And you said under oath, I believe, you heard loud
4 footsteps?

5 A. I didn't say "loud." I said they were heavy
6 footsteps.

7 Q. You've been at the Moore's a time or two; right?

8 A. I have, yes.

9 Q. Are you aware that that lower room, is that where
10 you were sleeping on a concrete slab?

11 A. It does not seem like a concrete slab. Well, the
12 lower room was a living room. I could tell it was basically a
13 solid floor. It might have been concrete. But where I heard
14 footsteps, it was more the kitchen area, wooden floors that
15 was creaking and making soft thudding noises.

16 Q. When you had been over to the Moore's, did you
17 notice they had a big dog?

18 A. They did have a big dog, yeah.

19 Q. A Great Dane named Marble?

20 A. Yes.

21 Q. A frisky dog?

22 A. Yes.

23 Q. What did the dog do when he comes up to a newcomer
24 in the house?

25 A. I don't recall.

1 Q. What did he do when you came into the house?
2 A. It didn't really do anything. It kind of just
3 stood there and admired me for a little bit and probably
4 growled a little bit and that was it.
5 Q. Was the dog laying on the couch?
6 A. When I laid on the couch, he would sit next to me
7 sometimes and ask for pets. He was a very nice dog.
8 MR. REGAN: May I approach the witness?
9 THE COURT: Yes.
10 Q. (By Mr. Regan) Mr. Moore -- excuse me, Mr. Koch,
11 let me show you Defendant's Exhibit 16. Is this a fair
12 diagram of the Moore family room as it was on the night in
13 question as you described for us today?
14 A. Yes.
15 MR. REGAN: At this time, we offer
16 Defendant's 16 into evidence.
17 THE COURT: Any objection?
18 MS. RASMUSSEN: No.
19 THE COURT: Defendant's 16 is admitted.
20 (Whereupon, Defendant's Exhibit No. 16 was
21 admitted into evidence.)
22 Q. (By Mr. Regan) So the jury will know, these are
23 the chairs that Mr. and Mrs. Moore were sitting?
24 A. Yes.
25 Q. There's the coffee table here?

1 A. Yes.
2 Q. And Marcus was over here?
3 A. Yes.
4 Q. And you were over here?
5 A. Yes.
6 Q. On both nights?
7 A. Yes.
8 Q. When Preston fell asleep, you said he was on the
9 couch. He was really in the chair?
10 A. Yes. It was a fold-out kind of a Lazy Boy chair.
11 Q. And the TV is up here?
12 A. I believe so, yes.
13 Q. I don't know if you know directions. If you're an
14 Eagle Scout, this would be north, that direction?
15 A. I believe so, yes.
16 Q. And we've taken measurements from sofa to sofa.
17 Would you agree with me, it's eight feet from where you were
18 to where Marcus was?
19 A. Give or take a few feet, yes.
20 Q. Two or three feet from where you were to where
21 Preston was?
22 A. It does not seem like two to three feet. Two --
23 seems a little bit more than that.
24 Q. Closer than you are to the jury box?
25 A. A little bit closer, yes.

1 Q. So you guys are in tight quarters, very close
2 proximity?

3 A. Yes.

4 Q. And you're saying Mr. Moore comes down in front of
5 his own son while his wife is upstairs asleep and is taking
6 pictures of you with his parents' camera?

7 A. Mr. Moore never actually went upstairs, from what
8 I recall. He stayed downstairs until everybody was asleep,
9 and when I was awake and up after the whole incident happened,
10 I specifically remember Marcus and Preston both having
11 blankets over their bodies and their faces.

12 Q. Did you tell the police that?

13 A. I did, yes.

14 Q. Did you tell the Sunflower House that?

15 A. I do believe so, yes.

16 Q. Let me show you Defense Exhibit 17. Is that a
17 fair and accurate photograph of how the family room looked on
18 both nights you discussed today?

19 A. Yes.

20 Q. These would be mom and dad chairs?

21 A. Yes.

22 Q. That's where you are?

23 A. Yes.

24 Q. That's where Marcus is?

25 A. Yes.

1 MR. REGAN: At this time, we offer
2 Defendant's 17 into evidence.

3 MS. RASMUSSEN: No objection.

4 THE COURT: Defendant's Exhibit 17 is
5 admitted.

6
7 (Whereupon, Defendant's Exhibit No. 17 was
8 admitted into evidence.)

9 Q. (By Mr. Regan) Defendant's 18, is this an
10 accurate, fair and accurate photograph of the loveseat you
11 were laying on?

12 A. Probably, yes.

13 MR. REGAN: At this time, we offer
14 Defendant's 18 into evidence.

15 THE COURT: Any objection?

16 MS. RASMUSSEN: No, Your Honor.

17 THE COURT: Exhibit 18 is admitted.

18 (Whereupon, Defendant's Exhibit No. 18 was
19 admitted into evidence.)

20 Q. (By Mr. Regan) So that would be in your -- if
21 you're laying down this way, face inward, you would be facing
22 south into the coffee table?

23 A. I do believe so, yes.

24 Q. Let me show you Defendant's Exhibit 19. Is that a
25 fair and accurate view of the same piece of furniture you were

1 laying on? It's just a closer-up version?

2 A. Yes.

3 MR. REGAN: At this time, we offer
4 Defendant's 19 into evidence.

5 THE COURT: Any objection?

6 MS. RASMUSSEN: No objection.

7 THE COURT: Defendant's Exhibit 19 is
8 admitted.

9 (Whereupon, Defendant's Exhibit No. 19 was
10 admitted into evidence.)

11 Q. (By Mr. Regan) Nick, let me show you Defendant's
12 Exhibit 20. Have you ever gone upstairs into Preston's room?

13 A. I had not, no.

14 Q. Had you ever gone upstairs to use the restroom?

15 A. I had not, no.

16 Q. Had you ever used the stairwell?

17 A. I had not, no.

18 Q. Is this a fair photograph of where you were laying
19 in the Moore's family room on the two nights you complained of
20 here today?

21 A. Yes.

22 MR. REGAN: At this time, we offer
23 Defendant's 20 into evidence.

24 MS. RASMUSSEN: No objection.

25 THE COURT: Defendant's Exhibit 20 is

1 admitted.

2 (Whereupon, Defendant's Exhibit No. 20 was
3 admitted into evidence.)

4 Q. (By Mr. Regan) Would you agree with me, this is
5 the view looking down from the stairwell?

6 A. Not the top, at the partway, middle of the
7 stairwell, yes.

8 Q. Is it, if you're standing or you're Preston Moore,
9 somebody going upstairs, you can see what's going on where you
10 were laying in the stairwell; correct?

11 A. Kind of.

12 Q. Nick, would it be fair to say at this time that
13 the lights were off in the family room?

14 A. Yes, they were off.

15 Q. And it's pitch black?

16 A. It was not pitch black.

17 Q. Could you see a little bit?

18 A. I could see lights, yes, through the windows that
19 were on the -- closer to the kitchen area where they would let
20 out their dog. They had a door that led to the backyard.

21 Q. When you were downstairs, when Mrs. Moore went
22 upstairs to bed?

23 A. I was currently in the basement when that had
24 happened.

25 Q. How do you know when she went to bed when you were

1 downstairs?

2 A. Because we came upstairs and she was nowhere to be
3 found on the main level.

4 Q. Do you think you guys playing Xbox down there
5 until about 3:30?

6 A. Roughly, yes.

7 Q. How did you reach your mother? Was it a phone
8 call or text?

9 A. It was a phone call.

10 Q. From the Moore's land line?

11 A. Yes.

12 Q. Was it a real brief call?

13 A. It wasn't -- for my part, it was brief. For the
14 part between my mother and Mr. Moore, it was a little bit
15 longer.

16 Q. How long were you saying your mother and Mr. Moore
17 were on the phone?

18 A. I could not give an actual estimated time.

19 Q. Less than a minute?

20 A. A few minutes.

21 Q. A few minutes, are you sure?

22 A. That is what it seemed like.

23 Q. Have you seen your mom's phone bill records from
24 that morning?

25 A. I had not, no, but I don't doubt that it wasn't

1 very high because she has a lot of friends. She talks with a
2 lot of people.

3 Q. I don't mean the bill. I mean the duration of
4 this call?

5 A. I don't know anything like that.

6 Q. Did Mr. Moore offer you a ride home?

7 A. From what occasion.

8 Q. The second night from his place to yours?

9 A. After the party?

10 Q. No. I'm talking about after you called your mom
11 and said you weren't feeling well.

12 A. He did not offer me a ride home, no.

13 Q. Was it raining that night?

14 A. It might have been drizzling. For all I know, it
15 could have been damp. I don't really remember. I was not
16 focused on the weather at the time. I was more focused on
17 getting out of that house.

18 Q. Is it a 10-minute drive from the Moore's back to
19 your house?

20 A. It depends on what route.

21 Q. About 10 minutes?

22 A. Roughly, yes.

23 Q. If you're going the shortest route going home to
24 get your son at three in the morning?

25 A. It could take a little bit less than that. My mom

1 has been known for speeding pretty nicely when it's in the
2 middle of the night.

3 Q. About how long did it take your mom to arrive
4 after you called her?

5 A. About five minutes. It did not take her very long
6 at all. She probably could sense the urgency in my voice, and
7 got in the car and just drove down there. It did not take her
8 very long at all. Like I said, it's basically a straight
9 route from my house to the Moore's house.

10 Q. Did you call your mom immediately?

11 A. After the event, yes.

12 Q. How long did you lay there before calling her?

13 A. Again, I don't know times specifically. After I
14 heard the last few soft steps stopping, I opened my eyes, and
15 I got up and grabbed the phone and walked to the bathroom,
16 straight over to the bathroom.

17 Q. Have you told the Sunflower House folks that you
18 had seen the Moores possess a camera with a cracked display on
19 the rear of it?

20 A. I believe, yes.

21 Q. How would you know that?

22 A. I have seen some of the technology that they have
23 there. They have been known to have laptops, computers,
24 because Preston at one time or another was the scribe for
25 Troop 37, which basically means that he takes attendance and

1 whatnot. He was big into taking photos also because he was
2 also the historian, from what I recall. So he would take
3 pictures every once in a while. Mrs. Moore was also big on
4 taking pictures. A bunch of scout moms were busy taking
5 pictures, so yeah.

6 Q. And after you left the Moore's that night, you and
7 your mom had a talk, and you guys went to talk to the
8 detectives in Overland Park, and they produced you for an
9 interview at the Sunflower House?

10 A. They did, yes.

11 Q. When you gave the interview at the Sunflower
12 House, the events that supposedly happened at the Moore's were
13 close in your mind?

14 A. They were very fresh in my mind.

15 Q. They were fresh in your mind and close in time;
16 right?

17 A. Yes.

18 Q. Much closer in time than they are today?

19 A. No doubt, yes.

20 Q. The gal at the Sunflower House, I think her name
21 was Sarah Byall, told you to tell the truth as best you can
22 recall?

23 A. Yes.

24 Q. You sat and visited with her about the 2009
25 allegations; right?

1 A. Yes.

2 Q. Isn't it true that you told her that you did not
3 recall being touched in 2009?

4 A. At that time, it was -- I was still -- I don't
5 know how to explain it. It was more like I was in shock of
6 what had just happened, and I wasn't fully all thinking
7 straight. The more time I had to think about everything that
8 was specifically going on, I could go into more details, and
9 it all had made sense to me. By the time afterwards and up
10 until this point, it was all -- it happened so fast, it was
11 just -- I don't really know how to explain it. It was one
12 right after another, and at the time it was -- I wanted to get
13 out as much information as I could, and then go back and
14 nitpick little details.

15 Q. Would it refresh your recollection to see what you
16 told the Sunflower House in the interview?

17 A. No. Because I've seen that tape, and I remember
18 what I've said in that tape.

19 Q. Isn't it true when this was fresh in your mind,
20 close in time, you told the Sunflower House interviewer,
21 trained, debriefed in this type of stuff, I wasn't touched in
22 2009?

23 A. I'm sorry, can you reword that?

24 Q. Didn't you tell the interviewer that you weren't
25 touched in 2009? That's my question, Nick.

1 A. No. I did tell her that I was touched in 2009.
2 MR. REGAN: All right. At this time, I ask
3 leave to play that snippet of that interview.
4 THE COURT: I don't believe it's been
5 admitted into evidence at this point. If you want to offer it
6 into evidence.
7 MR. REGAN: Yes, I will offer it into
8 evidence. I will proffer to the Court that we have a brief
9 portion of the interview between the Sunflower House
10 interviewer and this young man, Defendant's Exhibit 11.
11 THE COURT: Let's have it marked and
12 identified for the record.
13 I'm going to ask that the court reporter mark the
14 exhibits. She's in charge of keeping track of them and has
15 her own system of keeping track. She usually letters them so
16 it's separate from the State, one through sixteen, for
17 example, defense can be A through whatever. Because the State
18 also has a videotape so that they aren't confused, and they
19 start at Exhibit 1. So if you're marking yours as well. I'd
20 ask you to have Ms. O'Malley mark yours.
21 (Whereupon, Defendant's Exhibit A was
22 marked by the reporter for identification.)
23 THE COURT: It's A.
24 MR. REGAN: At this time, we list
25 Defendant's A.

1 MS. RASMUSSEN: Your Honor, the State's
2 position is that the proper foundation hasn't been laid. At
3 this time the State intends to admit the video, however, so I
4 guess we have no objection.

5 THE COURT: Defendant's Exhibit A is
6 admitted.

7 (Whereupon, Defendant's Exhibit A was
8 admitted into evidence.)

9 MR. REGAN: Judge, we ask leave of the
10 Court to publish.

11 THE COURT: How long is it?

12 MR. REGAN: It's short.

13 THE COURT: Yes, you may publish.

14 (Whereupon, Defendant's Exhibit A was
15 published to the jury.)

16 MR. REGAN: No further questions.

17 THE COURT: Any redirect?

18 **REDIRECT EXAMINATION**

19 **BY MS. RASMUSSEN:**

20 Q. Nick, just a couple of things. Do you remember
21 the exact date in December when your final got over?

22 A. I do not know, no.

23 Q. You're actually out of high school now?

24 A. Yes, I am, yes.

25 Q. That would have been about three years ago?

1 A. Yes.

2 Q. I guess my math isn't very good.

3 A. And my social studies and geography, and I suck

4 with dates.

5 Q. So you don't remember the specific date in

6 December of 2009 that this first incident occurred?

7 A. No, I do not.

8 Q. And I just want to make sure, in your Sunflower

9 House interview I believe Ms. Byall asked you did anything

10 happen to your body?

11 A. Yes.

12 Q. Did you understand that to mean were you touched

13 or not?

14 A. At that time, I only thought that she meant like

15 physical the way that I was laying down and where my body was

16 positioned. I didn't think that she meant had I been touched

17 or anything like that.

18 MS. RASMUSSEN: I have nothing further.

19 THE COURT: Any recross?

20 MR. REGAN: No, ma'am.

21 THE COURT: Thank you for your testimony.

22 You may step down. It's 2:53. It's probably a good time for

23 our afternoon break. Let's take a break until five after.

24 That will give us about twelve minutes. Let's take a break.

25 The jurors can retire to the jury room for a refreshment, and

1 let's take a break until five after.

2 (Whereupon, an afternoon recess was taken
3 at 2:53 p.m., and proceedings resumed at 3:09 p.m.)

4 THE COURT: We're back on the record in
5 State of Kansas versus Scott P. Moore, 10CR2633. Parties
6 appear as before. The defendant appears with his counsel.
7 The jury is in place. We took a recess this afternoon, and
8 we're now ready for further presentation by the State.

9 MS. RASMUSSEN: The State calls Lori Koch.

10 LORI KOCH,
11 having been duly sworn to tell the truth, the whole truth and
12 nothing but the truth, testified as follows:

13 DIRECT EXAMINATION

14 BY MS. RASMUSSEN:

15 Q. Was is your name?

16 A. My name is Lori Koch.

17 Q. And, Ms. Koch, are you married?

18 A. Yes, I am.

19 Q. Who to?

20 A. Gary.

21 Q. And do you have any children?

22 A. I have two sons, yes.

23 Q. What are their names?

24 A. Alexander and Nicholas.

25 Q. And how old is Nicholas now?

1 A. Nicholas is 19.
2 Q. Are you familiar with Scott Moore and his family?
3 A. Yes, I am.
4 Q. And just to make sure we're talking about the same
5 Scott Moore, is it this gentleman seated in the center at the
6 defense table?
7 A. The man with the tan jacket.
8 Q. How did you come to know the family?
9 A. I came to know them back in the Spring 2005 when
10 my son Nicholas joined Troop 37 of the Boy Scouts of America.
11 Q. At that time was Scott Moore heavily involved in
12 that troop?
13 A. Yes, he was the scoutmaster. Shea Kaiser was the
14 scoutmaster, and then Scott Moore took over sometime during
15 that 2005, end of the year.
16 Q. And how long was Scott Moore the scoutmaster of
17 that troop?
18 A. It was about a year that he was the scoutmaster.
19 Q. I'm going to fast-forward to May of 2010. Did
20 your son Nick report something to you that ultimately was
21 reported to the police?
22 A. Yes, he did.
23 Q. Going back to May 14th, 2010, do you remember if
24 Nick went anywhere that night?
25 A. Yes, he was. It was Friday night, and he had been

1 invited to Scott's son, Preston's, birthday party, and they
2 went out to dinner and then back to the Moore's house for cake
3 and gaming and stuff like that.

4 Q. When Nick left your house that night to go out to
5 the birthday celebration, was it his plan, your plan, for him
6 to stay the night at the Moore house?

7 A. No, he was not.

8 Q. At some point, did the plan get changed?

9 A. The plan changed.

10 Q. How does that happen?

11 A. I got a phone call -- this was two and a half
12 years ago, but it was probably between 10 and 11 o'clock, just
13 before I was supposed to come pick him up. He was like, "Mom,
14 I want to spend the night. We're having a good time. Can I
15 stay?" I said, "Well, it's been a long week. You know you're
16 kind of tired," blah, blah, blah, all scouting and camp out, I
17 don't think so. And he's like, "Oh, come on, come on, and
18 Scott Moore got on the phone and he's like, "Come on, Cookie."
19 That was my little nickname because we became friends through
20 scouting. He's like, "We're having a really great time.
21 Don't break up the party. Let Nick stay," and I relented, and
22 I said, "All right. That will be fine. I've got to pick him
23 up in the morning at some point." And that's how we left it.

24 Q. So after that phone call and that decision to stay
25 the night is made, when did you hear again from Nick?

1 A. It was about 3:45 in the morning, and I'm a pretty
2 light sleeper and I woke up, and it was Nick on the phone and
3 I said, "What is going on?"

4 Q. Is that something normal for Nick to call you when
5 he's staying at a friend's at 3:45?

6 A. Any time Nick has spent the night at a friend's
7 house, he has never called me in the middle of the night to
8 come get him.

9 Q. What did you do when you were speaking with Nick
10 on the phone?

11 A. I asked him what was going on. He said, "Mom,
12 come get me. You need to come get me. Come get me now."

13 Q. What did you do?

14 A. So I throw on clothes and went and picked him up
15 and got there a little after four in the morning.

16 Q. Where was Nick when you got there?

17 A. When I got there, Nick was standing outside in the
18 driveway waiting for me.

19 Q. Is it usual for you to pick him up outside in the
20 driveway at a friend's residence?

21 A. No. Usually, I have to knock on the door and try
22 to say, "Let's go. Time to go. We've got to get out of
23 here." And Nick, he was standing on the driveway.

24 Q. Did you see anyone else, or did you just stay
25 outside of the house?

1 A. I just stayed in the car.

2 Q. Okay.

3 A. And I had also said, "Do the Moores know you're
4 leaving?" He said to me, he goes, "Yes, they know I'm
5 leaving. Mr. Moore knows."

6 Q. And what happens when you pick Nick up? Does he
7 immediately tell you why you're leaving?

8 A. No. And I wanted to know what the reason was
9 because boys will be boys. I needed to know what's going on.
10 He said, "Let's go. Let's go. Let's get out of here. Just
11 go, Mom." He was very emphatic that I leave. Since he said
12 that the parents knew that he left, I just drove away.

13 Q. Did he eventually tell you that something else was
14 going on?

15 A. Yes, he did.

16 Q. And the jury has had the chance to hear from Nick,
17 so I'm not going to belabor every single thing Nick said. In
18 general, can you tell us what he said?

19 A. When we had gotten to within a mile of our
20 neighborhood, and I had been prodding all along, "What's going
21 on? I don't understand. Are you in trouble? What had you
22 guys been doing?" And finally he says, "No, Mom, I didn't do
23 anything." And then he told me that he had been awake, and
24 that there had been some flashes of light, and then he heard
25 these heavy footsteps moving around, and Scoot Moore had

1 groped him.

2 Q. Now, upon him telling you that, what time of the
3 morning is this?

4 A. This would have been around 4:15 to 4:30-ish time
5 frame. And then I was so in shock. And then we just drove
6 home.

7 Q. Did you decide to go to the police and report this
8 right away?

9 A. No. Because when we went home, Nick -- I said,
10 "Let's start at the beginning. Tell me about the night." The
11 one thing I didn't realize is that, you know, it wasn't just a
12 boy party. That it had been a family that had all gone out to
13 dinner and then came back to the house, and then it just went
14 on how they had been gaming and Mr. Moore had been gaming with
15 them. And then finally the kids had kind of shut down for the
16 night.

17 Q. Okay. But you didn't go to the police
18 immediately?

19 A. No. I did not go to the police immediately
20 because I was in shock, and we had to talk as a family and try
21 to sort this out. And it was incomprehensible that someone
22 would hurt my child like that.

23 Q. Were you concerned about Nick's feelings in all of
24 this and how he would feel if it was reported?

25 A. Yeah. We had to take a lot of that into, you

1 know, we had to look at the situation because we were just
2 like, "Oh, my gosh, how is this going to affect you?" "How is
3 this going to affect the Moore family?" And ultimately we
4 talked with friends and fought through a lot of tears and
5 anger. And at one point on a Saturday morning, and I even
6 went over to the Moore house and knocked on the door, and I
7 wanted to get to the bottom, to get into what happened.
8 Because they hadn't opened door, and because Sue Moore,
9 Scott's wife was graduating from school that day, and in the
10 end the result -- we decided Nick really wanted to report
11 this, and wanted it to happen.

12 Q. I'm going to stop you for a second. Within a day
13 or so of Nick telling, but what happened in May, did he
14 mention that anything had happened previously?

15 A. Yeah. He actually had mentioned that when I
16 talked to him because when I first got home that night in the
17 wee hours of the morning, and we had a cup of tea, and I had
18 woken his dad up, and we were talking about it as a family, he
19 had brought up the situation that he had given Mr. Moore the
20 benefit of the doubt back in September when he had spent the
21 night.

22 Q. I want to ask you in December 2009, do you recall
23 your son staying the night at the Moore house?

24 A. Yes, I do.

25 Q. Okay. Is there anything specific you recall about

1 going over to stay the night there then?

2 A. What I recall is he went over, and it was a
3 planned sleepover, and I had talked to Sue. I had come in the
4 house and met her dog, and she had all these cute Christmas
5 decorations. And at the end of that evening, you know, I left
6 and Nick stayed the night, and then the next morning I got a
7 phone call around 8 o'clock, 8:30-ish, and he wanted me to
8 come pick him up. That morning also he was standing on the
9 driveway when I picked him up. And I said, "What are you
10 doing on the driveway?" He said, "Oh, just want to get going.
11 I have stuff to do, whatever."

12 Q. But you're certain that was in December 2009?

13 A. Yes.

14 Q. You don't know the exact date?

15 A. Whenever that Friday was that the Blue Valley
16 school got out. If it was a Thursday or Friday, it was like
17 the first night of Christmas break. It was the night that he
18 spent. I don't recall the exact date.

19 Q. Okay. Now, up until May of 2010 when Nick tells
20 you what happened, had you had any personal falling-out or
21 arguments with the Moore family?

22 A. No, I had not.

23 Q. Did you consider their family friends of your
24 family?

25 A. I very much thought that. They were family

1 friends of our family. I had attended Sue Moore's 40th
2 birthday party. I had also taken pictures for that party. It
3 was a wine and cheese-type party. Scott was talking about all
4 different wines and paired them up with different appetizers,
5 and they had a camera there and no one was taking pictures,
6 and I said, "Do you want me to take pictures?" And I said,
7 "You know, just take pictures like in December," which I
8 stopped off at the house, dropped Nick off, I went in and was
9 talking to Sue. She showed me how she strung her beautiful
10 glass Christmas ornaments all around the dining room. Yeah,
11 we were on a very friendly basis.

12 Q. Had you heard about previous allegations?

13 A. Yes, I had.

14 Q. Did you know any specifics at the time?

15 A. I didn't know any of the specifics of the
16 allegation.

17 MR. REGAN: Judge, can we approach, please?

18 (Whereupon, the following proceedings were
19 held at the bench out of the presence of the jury.)

20 MR. REGAN: Your Honor, it would appear
21 that Erika is going to go into the 60-455 evidence with this
22 witness. I would respectfully renew my objection to that type
23 of evidence in my oral motion to reconsider on the basis that
24 the prejudicial value far outweighs the probative value, and
25 ask for a continuing objection throughout the pendency to this